



CHAPTER cxxxvi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to the Auckland Shildon and Wellington the Croydon and Wimbledon the Tarvin Malpas and Tarporley and the Windsor and Egham Joint Hospital Districts. A.D. 1903.

—

[11th August 1903.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1903. Short title.

A.D. 1903.

S C H E D U L E.

AUCKLAND SHILDON AND WILLINGTON JOINT HOSPITAL DISTRICT.

*Auckland
Shildon and
Willington
Order.*

Provisional Order for altering a Confirming Act.

To the Auckland Shildon and Willington Joint Hospital Board ; —
 To the Urban District Council of Crook ; —
 To the Urban District Council of Shildon and East Thickley ; —
 To the Urban District Council of Tow Law ; —
 To the Urban District Council of Willington ; —
 To the Rural District Council of Auckland ; —
 And to all others whom it may concern.

60 & 61 Vict.
c. lxix.

WHEREAS by virtue of the Auckland Shildon and Willington Joint Hospital Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1897 (which Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") and of an Order of the Local Government Board dated the Thirtieth day of September One thousand eight hundred and ninety-eight (herein-after referred to as "the adapting Order") and made in pursuance of Article XXIII. of the Order the Urban Districts of Crook Shildon and East Thickley and Willington and the Rural District of Auckland constitute the United District called the Auckland Shildon and Willington Joint Hospital District (herein-after referred to as "the United District") of which the governing body is the Auckland Shildon and Willington Joint Hospital Board (herein-after referred to as "the Joint Board") ;

And whereas by virtue of the Order and the adapting Order the Joint Board now consists of four ex-officio members and fourteen elective members elected by the several district councils mentioned in the Schedules to the adapting Order ;

And whereas it is expedient that the Urban District of Tow Law should be included in the United District and that the Order should be altered as herein-after provided :

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the

date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order shall be altered as follows:—

*Auckland
Shildon and
Wellington
Order.*

Art. I. The United District shall be extended so as to include the Urban District of Tow Law and subject to the provisions of this Order references in the Order to the Constituent Districts shall be deemed to include the Urban District of Tow Law and references in the Order to the Constituent Authorities shall be deemed to include the Urban District Council of Tow Law.

Extension of
United
District.

Art. II. The Order as altered by the adapting Order shall be further altered so that the Joint Board shall in future consist of five ex-officio members and seventeen elective members and the ex-officio members shall be the persons described in column 3 of the Schedules hereto and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that authority in column 4 of those Schedules.

Ex-officio and
elective mem-
bers of Joint
Board.

Art. III. The provisions of Article X. of the Order shall apply to the first election by the Urban District Council of Tow Law of the elective member to represent the Urban District Council on the Joint Board and to the first election by the Rural District Council of Auckland of the two additional elective members to represent the Rural District Council on the Joint Board as if in each case the election related to the filling of a vacancy occurring on the day of the date of the Act of Parliament confirming this Order.

First election
of additional
elective mem-
bers of Joint
Board.

Art. IV. Article XIV. of the Order shall have effect as if for subdivision (2) of that Article there were substituted the following subdivision that is to say,—

Admission into
hospital.

“ (2.) If the board of guardians of the poor of the Auckland Union or
“ of the Durham Union or of the Lanchester Union or of the
“ Weardale Union and the Joint Board agree for the reception into
“ the hospital of persons in the receipt of relief from that board of
“ guardians any such person may be admitted into the hospital in the
“ manner and on the terms prescribed in the agreement.”

Art. V. The Order as altered by the adapting Order and by this Order shall have effect as if the Schedules to this Order were substituted for the Schedules referred to in the Order and the adapting Order.

Schedules.

Art. VI. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the date of the Act of Parliament confirming this Order or any expense liability or accounts arising out of incidental to connected with or affected by the inclusion of the Urban District of Tow Law in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the date of the said Act and the Local Government Board may in such order deal with any matters which may be dealt with by

Adjustment.

[Ch. cxxxvi.] *Local Government Board's* [3 Edw. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

*Auckland
Shildon and
Wellington
Order.*

Short titles.

an Order or Provisional Order made under Section 304 of the Public Health Act 1875.

Art. VII. The adapting Order may be cited as the Auckland Shildon and Willington Joint Hospital Order 1898 this Order may be cited as the Auckland Shildon and Willington Joint Hospital Order 1903 and the Order the adapting Order and this Order may be cited together as the Auckland Shildon and Willington Joint Hospital Orders 1897 to 1903.

The SCHEDULES above referred to.

SCHEDULE A.

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Crook.	The Urban District Council of Crook.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	2
The Urban District of Shildon and East Thickley.	The Urban District Council of Shildon and East Thickley.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	2
The Urban District of Tow Law.	The Urban District Council of Tow Law.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	1
The Urban District of Willington.	The Urban District Council of Willington.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	2

[3 EDW. 7.] *Local Government Board's* [Ch. cxxxvi.]
Provisional Orders Confirmation (No. 8) Act, 1903.

SCHEDULE B.

A.D. 1903.

*Auckland
Shildon and
Wellington
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Rural District of Auckland.	The Rural District Council of Auckland.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being one of the ex-officio members described in Schedule A then the Vice Chairman of the Rural District Council.	10

Given under the Seal of Office of the Local Government Board this
Fifteenth day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

CROYDON AND WIMBLEDON JOINT SMALL-POX
HOSPITAL DISTRICT.

Provisional Order for altering a Confirming Act.

*Croydon and
Wimbledon
Order.*

To the Croydon and Wimbledon Joint Small-pox Hospital Board ; —
To the Mayor Aldermen and Burgesses of the Borough of Croydon ; —
To the Urban District Council of Penge ; —
To the Urban District Council of Wimbledon ; —
To the Rural District Council of Croydon ; —
And to all others whom it may concern.

WHEREAS by virtue of the Croydon and Wimbledon Joint Small-pox Hospital Order 1898 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1898 (which Order and Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the Borough of Croydon the Urban District of Wimbledon and the Rural District of Croydon constitute the United District called the Croydon and Wimbledon Joint Small-pox Hospital District (herein-after referred to as "the United District") of which the governing body is the Croydon and Wimbledon Joint Small-pox Hospital Board (herein-after referred to as "the Joint Board") ;

61 & 62 Vict.
c. lxxvii.

And whereas by virtue of the Order the Joint Board now consists of three ex-officio members and twelve elective members elected by the several authorities mentioned in the Schedules to the Order ;

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

- A.D. 1903. And whereas it is expedient that the Urban District of Penge should be included in the United District and that the Order should be altered as herein-after provided :
- Croydon and
Wimbledon
Order.
- 38 & 39 Viet.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Confirming Act so far as it relates to the Order shall be altered as follows :—
- Extension of
United District. Art. I. The United District shall be extended so as to include the Urban District of Penge and subject to the provisions of this Order references in the Order to the Constituent Districts shall be deemed to include the Urban District of Penge and references in the Order to the Constituent Authorities shall be deemed to include the Urban District Council of Penge.
- Ex-officio and
elective mem-
bers of Joint
Board. Art. II. The Order shall be altered so that the Joint Board shall in future consist of four ex-officio members and fourteen elective members and the ex-officio members shall be the persons described in column 3 of the Schedules hereto and the number of elective members to be elected by each of the Constituent Authorities shall be that set opposite to the name of that authority in column 4 of those Schedules.
- Election of
elective mem-
bers by district
council. Art. III. The provisions of Article X. of the Order shall apply to the first election by the Urban District Council of Penge of the elective members to represent the Urban District Council on the Joint Board as if the election related to the filling of a vacancy occurring on the day of the date of the Act of Parliament confirming this Order.
- Schedules. Art. IV. The Order as altered by this Order shall have effect as if the Schedules to this Order were substituted for the Schedules to the Order.
- Adjustment. Art. V. The Local Government Board upon the application of any of the Constituent Authorities or of the Joint Board may by order adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the date of the Act of Parliament confirming this Order or any expense liability or accounts arising out of incidental to connected with or affected by the inclusion of the Urban District of Penge in the United District or any expense liability or accounts in respect of which doubt or difference may arise after the date of the said Act and the Local Government Board may in such order deal with any matters which may be dealt with by an Order or Provisional Order made under Section 304 of the Public Health Act 1875.
- Short titles. Art. VI. This Order may be cited as the Croydon and Wimbledon Joint Small-pox Hospital Order 1903 and the Order and this Order may be cited together as the Croydon and Wimbledon Joint Small-pox Hospital Orders 1898 and 1903.

The SCHEDULES above referred to.

A.D. 1903.

*Croydon and
Wimbledon
Order.*

SCHEDULE A.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Members		Elective Members.
		Number.	Description.	Number.
The Borough of Croydon.	The Mayor Aldermen and Burgesses of the Borough of Croydon acting by the Council.	1	The Mayor or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Deputy-Mayor.	6
The Urban District of Penge.	The Urban District Council of Penge.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	2
The Urban District of Wimbledon.	The Urban District Council of Wimbledon.	1	The Chairman of the Urban District Council or in the event of his being unwilling to act or being the ex-officio member described in Schedule B then the Vice-Chairman of the Urban District Council.	3

SCHEDULE B.

1.	2.	3.		4.
Name of District.	Name of Authority.	Ex-officio Member.		Elective Members.
		Number.	Description.	Number.
The Rural District of Croydon.	The Rural District Council of Croydon.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being one of the ex-officio members described in Schedule A then the Vice-Chairman of the Rural District Council.	3

Given under the Seal of Office of the Local Government Board this
Twentieth day of April One thousand nine hundred and three.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

A.D. 1903.

**TARVIN MALPAS AND TARPORLEY JOINT
HOSPITAL DISTRICT.**

*Tarvin
Malpas and
Tarpорley
Order.*

*Provisional Order for forming a United District under Section 279
of the Public Health Act 1875.*

To the Urban District Council of Tarpорley ; —

To the Rural District Council of Malpas ; —

To the Rural District Council of Tarvin ; —

And to all others whom it may concern.

38 & 39 Vict.
c. 55.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows viz.,—

Definitions.

Art. I. In this Order —

- (1) The expression “the appointed day” means the date of the Act of Parliament confirming this Order ;
- (2) The expression “the Schedule” means the Schedule to this Order ;
- (3) The expression “the Act” means the Public Health Act 1875 ;
- (4) The expression “Constituent District” means a district named in column 1 of the Schedule and the expression “Constituent Districts” means all the districts so named ;
- (5) The expression “Constituent Authority” means a district council named in column 2 of the Schedule and the expression “Constituent Authorities” means all the district councils so named ;
- (6) The expression “the Joint Board” means the governing body of the United District to be formed in pursuance of this Order.

Commence-
ment of Order.

Art. II. This Order shall come into operation from and after the appointed day.

Formation of
district.

Art. III. The Constituent Districts shall be formed into a United District to be called the Tarvin Malpas and Tarpорley Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases.

Constitution
of governing
body.

Art. IV. The Joint Board shall consist of three ex-officio and nine elective members and shall be called the Tarvin Malpas and Tarpорley Joint Hospital Board.

Ex-officio and
elective
members.

Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities.

Number and
qualification of
elective mem-
bers.

Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent

[3 EDW. 7.] *Local Government Board's* [Ch. cxxxvi.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members.

*Tarvin
Malpas and
Tarporey
Order.*

Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board.

Disqualifications
for members.
56 & 57 Vict. c. 73.

Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority.

Date of first
election.

Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board.

Notification to
Local Govern-
ment Board of
members first
elected.

Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Tenure of
office of
members.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Supply of
vacancies.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board three members shall constitute a quorum.

Meetings.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

*Tarvin
Malpas and
Tarporley
Order.*

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval. Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Appointment
and remunera-
tion of officers.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

Mode of
admission into
hospitals.

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz.,—

- (a) By an order of the Joint Board or of a Constituent Authority;
- (b) By an order of a medical officer of health of a Constituent Authority;
- (c) By an order of a medical officer appointed by the Joint Board;
- (d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the poor of the Tarvin Union or of the Whitechurch Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Powers rights
duties &c. of
Joint Board.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and

[3 EDW. 7.] *Local Government Board's* [Ch. cxxxvi.]
Provisional Orders Confirmation (No. 8) Act, 1903.

Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz.,—

A.D. 1903.

*Tarvin
Malpas and
Tarpoley
Order.*

Of the Act :—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Of the Public Health (Officers) Act 1884 :—

47 & 48 Vict.
c. 74.

Section 2.

Of the Public Health (Members and Officers) Act 1885 :—

48 & 49 Vict.
c. 53.

Section 2.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

Power of
Local Govern-
ment Board to
make regula-
tions for the
prevention of
epidemic
diseases.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.

Saving hospital
powers of
Constituent
Authorities
till hospital
provided.

Art. XVIII. A copy of Section 132 of the Act shall be hung up in a conspicuous place at the principal entrance of the hospital or hospitals.

Notice of provi-
sions as to
recovery of cost
of maintenance.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

*Tarvin
Malpas and
Tarporely
Order.* —
Expenses of
Joint Board.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in respect of the cost of maintenance of patients as herein-after provided and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the afore-said payments each Constituent Authority shall contribute in the proportion which the number of inhabitants in their Constituent District bears to the total number of inhabitants of the Constituent Districts and for the purposes of this Article the number of inhabitants shall in each case be the number according to the returns of the last census prior to the issue of precepts of the Joint Board for contributions from the Constituent Authorities.

Calculation and
payment of
cost of main-
tenance of
patients.

Art. XX.—(1) The cost of maintenance of patients shall be ascertained and paid as follows viz.,—

- (a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the average daily cost per patient of the maintenance of patients who have been in the hospital during the previous half-year ;
- (b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or medical officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day in which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of the patients received into the hospital from the district of such authority after deducting any sums recovered by the Joint Board from or repaid to the Joint Board by or for those patients—

- (a) the name of each patient ;
- (b) the number of days during such half-year each patient has remained in the hospital ; and
- (c) the amount (calculated according to the daily average ascertained as aforesaid) due from the Constituent Authority.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received

[3 EDW. 7.] *Local Government Board's* [Ch. cxxxvi.]
Provisional Orders Confirmation (No. 8) Act, 1903.

into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

A.D. 1903.

—
*Tarvin
Malpas and
Tarporeley
Order.*

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Inspection of
accounts.

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of Local
Government
Board to adapt
provisions of
Order on
alterations of
Constituent
Districts.

Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Settlement of
differences.

Art. XXV. This Order may be cited as the Tarvin Malpas and Tarporeley Joint Hospital Order 1903.

Short title.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

The SCHEDULE above referred to.

*Tarvin
Malpas and
Tarporeley
Order.*

1.	2.	3.		4.
Name of District.	Name of District Council.	Ex-officio Members.		Elective Members.
		Number.	Description.	Number.
The Urban District of Tarporeley.	The Urban District Council of Tarporeley.	1	The Chairman or Vice-Chairman of the Urban District Council as the Council determine.	1
The Rural District of Malpas.	The Rural District Council of Malpas.	1	The Chairman or Vice-Chairman of the Rural District Council as the Council determine.	2
The Rural District of Tarvin.	The Rural District Council of Tarvin.	1	The Chairman or Vice-Chairman of the Rural District Council as the Council determine.	6

Given under the Seal of Office of the Local Government Board this
Second day of May One thousand nine hundred and three.

(L.S.) WALTER H. LONG President.
S. B. PROVIS Secretary.

WINDSOR AND EGHAM JOINT HOSPITAL DISTRICT.

Windsor and Egham Order. *Provisional Order for forming a United District under Section 279 of the Public Health Act 1875.*

To the Mayor Aldermen and Burgesses of the Borough of New Windsor;—
To the Rural District Council of Egham;—
To the Rural District Council of Windsor;—
And to all others whom it may concern.

38 & 39 Viet.
c. 55.

WHEREAS the district councils named in column 2 of the Schedule to this Order are the local authorities within the meaning of the Public Health Act 1875 for the districts named in column 1 of that Schedule:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 279 of the said Act and by any other Statutes in that behalf do hereby order as follows viz.,—

Definitions.

Art. I. In this Order—

- (1) The expression “the appointed day” means the date of the Act of Parliament confirming this Order;
- (2) The expression “the Schedule” means the Schedule to this Order;
- (3) The expression “the Act” means the Public Health Act 1875;

[3 EDW. 7.] *Local Government Board's* [Ch. cxxxvi.]
Provisional Orders Confirmation (No. 8) Act, 1903.

- (4) The expression "Constituent District" means a district named in column 1 of the Schedule and the expression "Constituent Districts" means all the districts so named; A.D. 1903.
Windsor and
Egham Order.
- (5) The expression "Constituent Authority" means a district council named in column 2 of the Schedule and the expression "Constituent Authorities" means all the district councils so named;
- (6) The expression "the Joint Board" means the governing body of the United District to be formed in pursuance of this Order.
- Art. II. This Order shall come into operation from and after the appointed day. Commence-
ment of Order.
- Art. III. The Constituent Districts shall be formed into a United District to be called the Windsor and Egham Joint Hospital District for the purposes of the provision maintenance and management for the use of the inhabitants of the Constituent Districts of a hospital or hospitals for the reception of cases of infectious diseases. Formation of
district.
- Art. IV. The Joint Board shall consist of three ex-officio and twelve elective members and shall be called the Windsor and Egham Joint Hospital Board. Constitution
of governing
body.
- Art. V. The ex-officio members shall be the persons described in column 3 of the Schedule and the elective members shall be elected by the Constituent Authorities. Ex-officio and
elective
members.
- Art. VI. The number of members of the Joint Board to be elected by each Constituent Authority shall be that set opposite to the name of the Constituent Authority in column 4 of the Schedule and the said members shall be chosen by each Constituent Authority from among their own members. Number and
qualification
of elective
members.
- Art. VII. Such of the provisions of Section 46 of the Local Government Act 1894 as relate to members of councils of districts other than boroughs shall with the necessary modifications apply to members of the Joint Board. Disqualifica-
tions for
members.
56 & 57 Vict.
c. 73.
- Art. VIII. The first election of members of the Joint Board shall take place at a meeting of each Constituent Authority to be held within six weeks from the appointed day or within such further time as the Local Government Board may allow and seven days' previous notice in writing of such meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority. Date of first
election.
- Art. IX. The clerk to each Constituent Authority shall notify in writing to the Local Government Board within seven days after the first election has taken place the names address and occupation of each of the persons elected by the Constituent Authority as a member of the Joint Board. Notification
to Local
Government
Board of
members
first elected.
- Art. X. An elective member of the Joint Board shall continue in office until the expiration of the period for which he was elected a member of the Joint Board or until he dies or resigns or ceases to be a member of the Constituent Authority as a member of which he was qualified to be elected Tenure of
office of
members.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903. or otherwise becomes disqualified or until he becomes an ex-officio member of the Joint Board whichever shall first happen :

Windsor and Egham Order.

Provided always that an elective member shall not continue in office for a longer period than three years without re-election and a member who ceases to hold office by reason of the expiration of his period of office or by reason of his resignation or disqualification or ceasing to be a member of the said Constituent Authority shall subject to the provisions of Article VII. of this Order be re-eligible as a member of the Joint Board if at the time of re-election he is qualified to be so re-elected.

Supply of vacancies.

Art. XI. Any vacancy occurring amongst the elective members of the Joint Board by death resignation disqualification or otherwise shall be filled up by the Constituent Authority in whose representation the vacancy happens at a meeting to be held within six weeks of the occurrence of the vacancy or within such further period as the Local Government Board determine and seven days' previous notice in writing of the said meeting shall be given or sent to each member of the Constituent Authority by the clerk to that authority and the clerk shall forthwith notify in writing to the clerk to the Joint Board the names address and occupation of the person elected to fill the said vacancy.

Art. XII.—(1) The time and place of holding the first meeting of the Joint Board shall be fixed by the Local Government Board and the subsequent ordinary meetings of the Joint Board shall be held at such times and places as the Joint Board may appoint and at all meetings of the Joint Board five members shall constitute a quorum.

(2) An extraordinary meeting shall be summoned by the clerk to the Joint Board when a requisition for that purpose is addressed to him by the chairman or any three members of the Joint Board.

(3) The requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.

(4) Notices of all meetings of the Joint Board shall be delivered or sent by post so as to reach the last known place of abode or business in England of each member of the Joint Board three clear days before the day of meeting or at such earlier time as the Joint Board direct.

Committees.

(5) The Joint Board may appoint committees consisting of members of the Joint Board for the exercise of any powers which in the opinion of the Joint Board can be properly exercised by committees but the acts of every such committee shall unless otherwise directed by the Joint Board be submitted to the Joint Board for approval Provided that a committee so appointed shall in no case be authorised to borrow money or to issue any precept for contributions or to enter into any contract and any such committee shall be subject to the provisions of Part IV. of the First Schedule to the Local Government Act 1894 so far as they are applicable.

Appointment and remuneration of officers.

Art. XIII. The Joint Board shall at their first meeting or at an adjournment thereof and thereafter as occasion requires appoint a chairman (who

shall subject to the provisions of Articles VII. and X. of this Order continue chairman for such period not exceeding three years as may be determined by the Joint Board at the time of his appointment) a treasurer and a clerk and they may appoint one or more medical officers who shall be registered medical practitioners and such other officers and servants as they think requisite. The Joint Board may pay their treasurer clerk medical officers and other officers and servants such reasonable remuneration as they deem expedient and every such treasurer clerk medical officer and other officer and servant shall be removable by the Joint Board at their pleasure.

A.D. 1903.

*Windsor and
Egham Order.*

Art. XIV.—(1) Persons shall be admitted into a hospital provided by the Joint Board in any of the following modes and not otherwise except with the consent of the Constituent Authorities viz,—

Mode of admission into hospitals.

- (a) By an order of the Joint Board or of a Constituent Authority ;
- (b) By an order of a medical officer of health of a Constituent Authority ;
- (c) By an order of a medical officer appointed by the Joint Board ;
- (d) By an order of a justice made under the provisions of Section 124 of the Act with the consent required by that section.

(2) If the board of guardians of the poor of the Windsor Union and the Joint Board agree for the reception into the hospital of persons in the receipt of relief from that board of guardians any such person may be admitted into the hospital in the manner and on the terms prescribed in the agreement.

Art. XV. For the purposes of this Order the following sections of the Act the Public Health (Officers) Act 1884 and the Public Health (Members and Officers) Act 1885 shall apply and the Joint Board shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an Urban District Council under the same sections so far as the same are applicable viz,—

Powers rights duties &c. of Joint Board.

Of the Act :—

Sections 122 123 131 and 132 relating to infectious diseases and hospitals.

Sections 173 and 174 (except sub-section 3) relating to contracts.

Sections 175 176 and 177 relating to purchase sale and letting of lands.

Sections 179 to 181 relating to arbitration.

Sections 192 to 197 and Sections 205 and 206 (except so much of Section 206 as requires the publication in a local newspaper of the annual report) relating to officers provision of offices and conduct of business of local authorities.

Sections 245 247 (as amended by the District Auditors Act 1879) 249 and 250 relating to audit.

Sections 251 253 and 254 and Sections 258 to 263 and 265 to 267 and Section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903.

*Windsor and
Egham Order.*

47 & 48 Vict.
c. 74.

48 & 49 Vict.
c. 53.

Power of
Local Govern-
ment Board to
make regula-
tions for
prevention of
epidemic
diseases.

Saving hospital
powers of
Constituent
Authorities
till hospital
provided.

Notice of provi-
sions as to
recovery of cost
of maintenance.

Expenses of
Joint Board.

Calculation
and payment
of cost of
maintenance
of patients.

Section 298 as to costs of Provisional Orders.

Sections 306 to 309 including miscellaneous provisions.

Of the Public Health (Officers) Act 1884 :—

Section 2.

Of the Public Health (Members and Officers) Act 1885 :—

Section 2.

Art. XVI. The Joint Board shall for the purpose of the sections of the Act with regard to the "Prevention of epidemic diseases" be a local authority so as to enable the Local Government Board by any regulations under those sections to confer powers and to impose duties on the Joint Board and so far as regards any powers so conferred and any duties so imposed but nothing in this Order contained shall prevent the Local Government Board from imposing any duties by any regulations under the said sections on any Constituent Authority or affect the powers of any Constituent Authority so far as the same may be required to be exercised in pursuance of the said regulations.

Art. XVII. Until a hospital provided by the Joint Board is ready for the reception of patients nothing in this Order shall take away abridge or prejudicially affect any power vested in any Constituent Authority with regard to the provision of a hospital or hospitals for the use of the inhabitants of their district.

Art. XVIII. A copy of Section 132 of the Act shall be hung up in a conspicuous place at the principal entrance of the hospital or hospitals.

Art. XIX.—(1) All the expenses incurred by the Joint Board shall be defrayed out of a common fund to which shall be paid the sums received from the Constituent Authorities in respect of the cost of maintenance of patients as herein-after provided and the sums recovered by the Joint Board from or repaid to the Joint Board by or for patients.

(2) To the common fund so far as the same is not provided by the aforesaid payments the Constituent Authorities respectively shall contribute in the proportions determined by the amounts which at the time of issuing the precepts of the Joint Board for contributions would be raised by a rate in the nature of a general district rate in the Urban District and by a rate to defray special expenses in each Rural District at an equal rate in the pound.

Art. XX.—(1) The cost of maintenance of patients shall be ascertained and paid as follows viz.,—

- (a) Within twenty-one days after the Thirty-first day of March and the Thirtieth day of September in each year the Joint Board shall ascertain the average daily cost per patient of the maintenance of patients who have been in the hospital during the previous half-year ;
- (b) The cost of maintenance of patients shall include all the expenses incurred in and about the maintenance and care of the patients in the hospital and in and about their medical treatment (except so far as the same shall be included in the salaries of the medical officer or

medical officers and permanent nurse or nurses) and in and about the clothing conveyance to and from the hospital burials and funerals of patients and shall also include during any day in which a patient or patients may have been in the hospital the remuneration and rations of temporary nurses but shall not include the cost of the repairs to the hospital or to the fittings and furniture thereof or the salaries remuneration or rations of the officers or servants other than temporary nurses.

A.D. 1903.

*Windsor and
Egham Order.*

(2) The clerk to the Joint Board shall within twenty-eight days after the Thirty-first day of March and the Thirtieth day of September in each year transmit to the clerk to each Constituent Authority an account showing in respect of the patients received into the hospital from the district of such authority after deducting any sums recovered by the Joint Board from or repaid to the Joint Board by or for those patients—

(a) the name of each patient ;

(b) the number of days during such half-year each patient has remained in the hospital ; and

(c) the amount (calculated according to the daily average ascertained as aforesaid) due from the Constituent Authority.

(3) The amount shown by the said account to be due shall be paid by the Constituent Authority from whose district the said patients have been received into the hospital and shall be included in the precepts which the Joint Board issue to the Constituent Authorities respectively under Section 284 of the Act stating the sums to be contributed by the Constituent Authorities towards the common fund of the district and in case of default shall be recovered in like manner as the sums to be contributed towards the said common fund.

Art. XXI. The accounts of the Joint Board shall at all reasonable times be open to inspection and transcription without payment by any member of a Constituent Authority or by any officer of a Constituent Authority authorised by them for that purpose.

Inspection of
accounts.

Art. XXII. A copy of the auditor's report and of the abstract of the accounts of the Joint Board when duly audited shall be sent by the Joint Board to each Constituent Authority.

Auditor's
report and
abstract of
accounts.

Art. XXIII. If at any time any new district is formed including the whole or any part of a Constituent District or the boundaries of a Constituent District are otherwise altered or a Constituent District is created or included in a municipal borough or any repeal or alteration is made in the law affecting the United District or the Joint Board or a Constituent District or Constituent Authority in matters touching their relation to the United District or the Joint Board then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Order to the alteration so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Order.

Power of Local
Government
Board to adapt
provisions of
Order on alter-
ations of Con-
stituent
Districts.

[Ch. cxxxvi.] *Local Government Board's* [3 EDW. 7.]
Provisional Orders Confirmation (No. 8) Act, 1903.

A.D. 1903. Art. XXIV. In case of difference respecting any matter arising out of the provisions of this Order the difference except in any case otherwise herein provided for shall be referred to and be settled by arbitration in the manner provided by the Act and the provisions of the Act shall with the necessary modifications apply as if the Joint Board or a Constituent Authority as the case may be were a party within the meaning of those provisions.

Windsor and Egham Order.
Settlement of differences.

Short title. Art. XXV. This Order may be cited as the Windsor and Egham Joint Hospital Order 1903.

The SCHEDULE above referred to.

1.	2.	3.	4.	
Name of District.	Name of District Council.	Ex-officio Member.	Elective Members.	
		Number.	Description.	Number.
The Borough of New Windsor.	The Mayor Aldermen and Burgesses of the Borough of New Windsor acting by the Council.	1	The Mayor or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Deputy-Mayor.	4
The Rural District of Egham.	The Rural District Council of Egham.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	3
The Rural District of Windsor.	The Rural District Council of Windsor.	1	The Chairman of the Rural District Council or in the event of his being unwilling to act or being an ex-officio member elsewhere described in this Schedule then the Vice-Chairman of the Rural District Council.	5

Given under the Seal of Office of the Local Government Board this
Second day of May One thousand nine hundred and three.

(L.S.) WALTER H. LONG President.
S. B. PROVIS Secretary.

Printed by EYRE and SPOTTISWOODE,
FOR
T. DIGBY PIGOTT, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
EYRE AND SPOTTISWOODE, EAST HARDING STREET, FLEET STREET, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 116, GRAFTON STREET, DUBLIN.